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**To:** [ostp-ai-rfi](#)  
**Subject:** [External] AI Action Plan  
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Hello,

This exception should not go into effect. Either everyone follows the same laws and regulations or no one does. Many people rely on their work being protected and this idea is so flawed that anyone could just claim they're training a GenAI and then suddenly every single copyrightable work, including SOFTWARE, is free to use. This sets an extremely dangerous precedent.

In addition, this GenAI will be used to compete against those who don't use it, but are forced to follow Copyright rules putting them in an unfair advantage in the market. It will also encourage stealing as anyone could just go take whatever someone generated with AI and just throw that in their own AI and generate something with that. It will create an environment of constant theft and we'll just start to look like China at that point.

This could also cause products from companies using GenAI to be banned in places where they do enforce Copyright rules and lots of litigation from companies that sell products in our country that are extremely protective of their IPs.

Ultimately, this is just a bad and poorly thought out idea that only seeks to try and get a leg up after they hit a dead end with a product most people use for amusement or have no interest in it at all while causing nothing, but problems for everyone else.

Thank you,  
Mitchell Tewksbury

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